

National Commission on Women

Proposed Reforms to the Muslim Marriage and Divorce Act (MMDA)

The National Commission on Women, as a newly established statutory body mandated to safeguard and promote the rights of women in Sri Lanka, respectfully submits its proposals and recommendations for consideration by the Advisory Committee on Muslim Law Reforms.

Introduction

The Muslim Marriage and Divorce Act No. 13 of 1951 (MMDA) contains provisions that are discriminatory, unconstitutional, and inconsistent with Sri Lanka's obligations under international human rights law. In practice, its implementation has facilitated systemic discrimination and gender-based injustice, disproportionately harming poor, marginalised, and vulnerable Muslim women and children.

Reform is no longer optional. It is a constitutional imperative. The State bears a duty to ensure that all personal laws comply with the guarantees of equality, dignity, and equal protection of the law.

This submission sets out consolidated recommendations aimed at ensuring constitutional compliance, gender justice, child protection, accountability, and access to professional judicial oversight.

1. Minimum Age of Marriage:

Section 23 of the MMDA permits the registration of marriages involving girls under twelve years with Quazi authorisation. This provision is incompatible with child protection standards and constitutional guarantees.

We recommend repeal of Section 23 and the insertion of a new clause as follows:

“Notwithstanding any rule of Muslim law or custom to the contrary, no marriage shall be registered or recognised as legally valid under this Act unless both parties have attained the age of eighteen (18) years.”

Any marriage contracted in violation of this provision shall be void *ab initio*.

Consequential Amendments

1. Amend Section 363(e) of the Penal Code by repealing the words:
“*unless the woman is his wife and is over twelve years of age.*”
Sexual intercourse with a girl under 16 must constitute statutory rape irrespective of marital status.
2. Introduce Penal Sanctions for Registrars:
Any Registrar who knowingly registers a marriage where a party is under 18 must be subject to mandatory criminal penalties (fine and/or imprisonment).
3. Mandatory Proof of Age:
A Certified Copy of the Birth Certificate must be a mandatory document for marriage registration. Estimation of age based on appearance must be prohibited.

These reforms are essential to protect children from forced and underage marriage and to align the MMDA with the “best interests of the child” principle.

2. Signature of the Bride and Reform of Section 19

Marriage is a voluntary civil contract between two adults. The current requirement that the wali sign on behalf of the bride undermines women’s legal agency.

Recommended Amendment to Section 19(1):

The register must be signed by:

- (a) the groom;
- (b) the bride;
- (c) the person who conducted the Nikah ceremony;
- (d) two witnesses present at the ceremony; and
- (e) the Registrar.

Proviso:

- The bride and groom must sign in the physical presence of the Registrar.
- The Registrar must verify identity and ensure free and full consent of the bride and groom.
- A guardian’s (wali’s) signature may be included only at the express request of the bride and shall not substitute her signature.

This amendment restores women’s autonomy while respecting ceremonial practice.

3. Abolition of Polygamy (Section 24)

Polygamy is incompatible with constitutional guarantees of equality and non-discrimination. The Commission recommends its abolition.

4. Equality in Divorce Procedures (Sections 27 & 28)

Sections 27 and 28 create unequal rights as a result of the following:

- A husband may pronounce Talaq without cause.
- A wife must prove fault, often under onerous evidentiary burdens.

Recommended Reform

Repeal Sections 27 and 28 and replace them with a unified provision as follows:

“Any party to a marriage may petition the Court for dissolution. The grounds, procedures, and evidentiary standards shall apply equally to both spouses, notwithstanding any custom or sect-based practice.”

Introduce “Irretrievable Breakdown of Marriage”

This shall be the primary ground for divorce.

Evidentiary Reform

- A woman's sworn affidavit and medical evidence shall constitute prima facie evidence of abuse.
- Her testimony shall carry equal evidentiary weight.
- The burden shall shift to the husband to rebut allegations.

Financial Safeguards Before Final Decree

To prevent abandonment without financial accountability, a decree of dissolution shall not be finalised until:

- Mahr obligations are settled;
- Property division orders are issued;
- Child custody and maintenance arrangements are determined.

Recognition of Mutual Consent (Mubarat)

Where parties submit a Joint Declaration of Dissolution, the District Court shall grant divorce within 30 days without adversarial proceedings.

5. Abolition of the Quazi System and Judicial Reform

The Quazi system lacks structural safeguards including professional qualifications, accountability, infrastructure, and appellate integrity. It has failed to provide safe and dignified access to justice for women.

The Commission recommends:

- Abolition of the Quazi system.
- Transfer of all Muslim matrimonial matters to the District Court until a specialised Family Court system is established.
- Establishment of a Conciliation Unit within the District Court to facilitate settlement in uncontested matters.

If any interim structure remains, women must be eligible for appointment as Quazis, members of Board of Quazis, Assessors, and Registrars. The exclusion of women violates Articles 12(1) and 12(2) of the Constitution.

6. Maintenance Enforcement

Currently, enforcement requires referral from Quazi courts to Magistrate's Courts, causing delays.

The Commission recommends:

- Transfer of all maintenance jurisdiction directly to Magistrate's Courts (or District/Family Courts under a unified system).

- Standardised evidentiary procedures.
- Time-bound enforcement mechanisms.
- Welfare-sensitive financial assessments prioritising children's needs.

7. Right to Opt Out of the MMDA

Muslim citizens are compulsorily subjected to the MMDA and denied access to the general Marriage Registration Ordinance (MRO), unlike Kandyan Sinhalese who may opt into general law.

This compulsory application constitutes unequal treatment based solely on religion.

The Commission recommends:

- Amendment of the Marriage Registration Ordinance to permit Muslim citizens to marry and divorce under the general law if they so choose.
- Recognition of an individual's constitutional right to choose the legal framework governing their marriage.

No citizen should be compelled to marry under a system that permits practices they consider discriminatory.

Conclusion

The reform of the MMDA is a constitutional obligation and a moral necessity. These recommendations seek to:

- Protect children from harm;
- Guarantee equality before the law;
- Ensure women's rights, autonomy and dignity;
- Professionalise judicial oversight;
- Prevent financial abandonment faced by Muslim women;
- Restore public confidence in the administration of Muslim matrimonial law.

The State must ensure that all personal laws operate within the framework of the Constitution, uphold the fundamental rights of every citizen of Sri Lanka, and protect women's rights guaranteed under the Women Empowerment Act No. 37 of 2024.

National Commission on Women
28 February, 2026